



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 11 judgments on Tuesday 13 November 2018 and 55 judgments and / or decisions on Thursday 15 November 2018.

Press releases and texts of the judgments and decisions will be available at 10 a.m. (local time) on the Court's Internet site (www.echr.coe.int)

Tuesday 13 November 2018

[A.T. v. Estonia \(application no. 23183/15\)](#)

The applicant, Mr A.T., is an Estonian national who was born in 1977. He is currently serving a life sentence in prison.

The case concerns his complaint about the security arrangements for medical examinations outside prison and for a hospital visit he made to his baby daughter.

The applicant has been serving his prison sentence in X Prison since 2008. In November 2010 and October 2011 he was taken to hospital for medical examinations. After a risk assessment, the prison authorities decided that he had to wear handcuffs and ankle cuffs. He states that prison officers remained in the examination room with him, that they could overhear his conversation with medical staff and that he was not allowed to wear his own clothes.

He was also taken to visit his seriously ill newborn daughter in hospital in January 2012, which included the same security measures. He states that he was prevented from touching his child and the officers remained with him all the time, being able to overhear his conversation with his daughter's doctors.

The applicant complained about the security arrangements for the visits but in January 2013 the Tartu Administrative Court dismissed his complaint in full. His appeal was rejected.

Relying on Article 3 (prohibition of inhuman or degrading treatment) and Article 8 (right to respect for private and family life, the home and correspondence) of the European Convention on Human Rights, the applicant complains about the security arrangements which were put in place for his hospital visits. He also complains about certain aspects of the visit to his daughter under Article 8 and Article 6 § 1 (right to a fair trial).

[A.T. v. Estonia \(no. 2\) \(no. 70465/14\)](#)

The applicant is the same as in A.T. v. Estonia (application no. 23183/15).

In February 2012 he attacked another prisoner, stabbing him several times with a scissor blade. The prison authorities decided the same month to impose additional security measures, placing him in isolation, restricting his freedom of movement and communication within the prison, banning him from the sports facilities and handcuffing him whenever he was outside his cell.

The security measures were prolonged in August 2012 and February 2013.

The applicant complained about the extension decisions but the Tartu Administrative Court dismissed his actions in January and October 2013 respectively, largely agreeing with the prison authorities' risk assessments. The Tartu Court of Appeal reversed part of the first-instance judgment relating to the first four days of the second extension of the measures for failure by the prison

authorities to review them within the required six months, but upheld the rest of the judgment. The Supreme Court refused in June 2014 to examine an appeal on points of law lodged by the applicant.

Relying on Article 3 (prohibition of inhuman or degrading treatment), the applicant complains about the additional security measures that were imposed on him.

[Litschauer v. the Republic of Moldova \(no. 25092/15\)](#)

The applicant, Martin Litschauer, is an Austrian national who was born in 1979 and lives in Chişinău.

The case concerns the lawfulness of the applicant's detention.

Mr Litschauer was the owner of a company which ran an erotic video-chat business in Chişinău. It employed young female models who provided erotic shows via webcams to customers outside Moldova in exchange for payment.

In March 2015 the applicant was arrested and accused of pimping (*proxenetism*). On 7 March 2015 the District Court ordered that Mr Litschauer be remanded in custody for 30 days. He appealed and argued that the order had not been based on a reasonable suspicion that he had committed an offence. He submitted that he could not be accused of pimping as the models he employed had not been engaged in prostitution. His appeal was rejected. Subsequently, the applicant's detention was prolonged for another 30 days, and an appeal against the second order was again unsuccessful.

On 30 December 2016 the District Court found the applicant guilty of the charges but ordered that the criminal proceedings against him be terminated on the basis of an amnesty law. One of the conditions for applying the amnesty law was for the applicant to admit his guilt. Mr Litschauer did not appeal against this decision. In deciding the case, the court had sought an opinion from the State Agency for the Protection of Morality as to whether the female models' acts could be classified as prostitution and, thus, whether Mr Litschauer's activity could be described as pimping.

The opinion, issued on 21 October 2015 and which was the key element in convicting the applicant, stated that what the models did could be considered as acts of prostitution. Hence, the fact that the applicant obtained revenue from that activity could qualify as pimping.

Relying on Article 5 §§ 1 and 3 (right to liberty and security / entitlement to trial within a reasonable time or to release pending trial), Mr Litschauer complains that his detention between 3 March and 27 April 2015 was not lawful and/or based on a reasonable suspicion that he had committed a criminal offence, or based on relevant and sufficient reasons. He maintains in particular that he was held in custody for an offence which was not clearly defined under domestic criminal law.

[Revision](#)

[Cacuci and S.C. Virra & Cont Pad S.R.L. v. Romania \(no. 27153/07\)](#)

The first applicant, Floare Cacuci, was born on 2 March 1939 and lived in Oradea. She was the owner and general manager of the second applicant, S.C. Virra & Cont Pad SRL, a single-member company. The case concerned a police search of Ms Cacuci's home and S.C. Virra's business premises.

Ms Cacuci was an accounting expert who wrote forensic accounting reports for criminal cases. She was placed under investigation in October 2005 on the suspicion that she had committed intellectual forgery while producing one of her reports in order to help a defendant avoid investigation. The Oradea District Court issued a warrant for the search of her home.

According to Ms Cacuci, a police officer stopped her just after she had left the house and searched her bag and seized some personal documents. Officers then searched her home and her business premises, which were controlled by S.C. Virra. The authorities seized computer equipment, and paper and electronic records. She lodged a complaint with the prosecutor's office about the search and seizure, in addition to two sets of civil proceedings about the incident. All of her complaints and claims were dismissed. Ms Cacuci was eventually acquitted of all the charges made against her.

In a judgment of 17 January 2017 the Court held that there had been a violation of Article 8 (right to private life) on account of the search performed on Ms Cacuci's bag, which had included the seizure of an orange notebook, and that the respondent Government was to pay the applicant 4,500 euros (EUR) for non-pecuniary damage and EUR 500 for costs and expenses.

On 14 June 2017 the Government informed the Court that Ms Cacuci had died on 28 December 2016. They accordingly requested revision of the judgment of 17 January 2017, which they had been unable to execute because Ms Cacuci had died before the judgment had been adopted.

The Court will deal with the Government's request in its judgment of 13 November 2018.

[Arzhiyeva and Tsadayev v. Russia \(nos. 66590/10 and 3773/11\)](#)

The applicants, Patimat Arzhiyeva and Akhmed Tsadayev, are Russian nationals who were born in 1949 and 1984 and live in Strasbourg (France) and Grozny, Chechnya, (Russia) respectively.

The case concerns the applicants' failed legal efforts to obtain compensation for property destroyed during the hostilities in Chechnya.

The first applicant's flat was damaged in 1994-1995 and then destroyed in 1999-2000. She lodged an application for compensation in March 2005. The commission in charge of compensation informed her in June 2010 that the process could not move forward as her building had not been registered in a list of destroyed buildings. However, the technical unit responsible for drawing up that register had been suspended in August 2005.

She challenged the commission's decision, but the domestic courts rejected her case, finding that the commission could not act because of the suspension of the unit's work. She brought a claim directly against the Government of Chechnya, which was ultimately rejected by the Supreme Court of Chechnya in May 2013.

The building where the second applicant's flat was located was destroyed in 1999-2000. [His application for compensation](#) was also not examined by the commission because of the suspension of the technical unit's work. He went to court, but his complaint about the commission was dismissed by the Supreme Court of Chechnya in August 2010.

The applicants both complain of an interference with their right to the peaceful enjoyment of their possessions under Article 1 of Protocol No. 1 (protection of property) to the Convention and of a lack of an effective remedy for that problem under Article 13 (right to an effective remedy).

[Zhang v. Ukraine \(no. 6970/15\)](#)

The applicant, Yu Zhang, is a Chinese national who was born in 1983 and lives in Tianchang, the People's Republic of China.

The case concerns the fairness of the criminal proceedings which led to Mr Zhang's being found guilty of murder during his time as a student in Ukraine.

On 1 May 2009, a fight broke out between four Ukrainians and a group of Chinese nationals, including the applicant, while the latter were having a picnic. During the fight, one of the Ukrainian men was stabbed. He died from his injuries in hospital three days later. Mr Zhang was arrested and charged with his murder the same day.

A new Code of Criminal Procedure (CCP) entered into force in Ukraine in November 2012, introducing major changes. By that time the proceedings against the applicant had been going on for three and a half years, with several rounds of pre-trial investigation aimed at rectifying numerous flaws and deficiencies.

Meanwhile all the applicant's fellow Chinese students, who had made witness statements favourable to the defence, had left the country. Relying on the new CCP, the courts refused to admit

the statements as evidence as they had not been made directly in court. In July 2013 the Kyivskyy Court sentenced the applicant to 12 years' imprisonment. An ordinary appeal by Mr Zhang and an appeal on points of law were unsuccessful.

His conviction was largely based on the testimony of two of the Ukrainian men involved in the fight, Sa. and Su. However, Su. had reportedly been too drunk to talk to the police on the day of the incident, while Sa. had offered contradictory accounts of events on at least three occasions, at one point conceding that his identification of Mr Zhang as the culprit had been driven by emotion.

Relying on Article 6 § 1 (right to a fair trial), the applicant complains that he was denied a fair trial and argues that his conviction was predicated exclusively on controversial, inconsistent and speculative statements from the victim's friends, which had changed on multiple occasions.

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Paul and Borodin v. Russia (no. 28508/14)

Dirama v. Turkey (no. 20797/07)

Erdoğan and Others v. Turkey (no. 15520/06)

'La Présidence du Parti pour le Salut du Peuple' v. Turkey (no. 47847/09)

Şimşek v. Turkey (no. 48719/08)

Thursday 15 November 2018

[Togrul v. Bulgaria](#) (no. 20611/10)

The applicant, İsmet Togrul, is a Turkish national who was born in 1963 and lives in Istanbul (Turkey).

The case concerns the confiscation by the Bulgarian authorities of a sum of money (199,400 euros (EUR)) which Mr Togrul had not declared to Bulgarian customs, and the retention of EUR 9,100.

In October 2008 Mr Togrul entered Bulgaria in a vehicle. As he was leaving the country a Bulgarian customs official asked him whether he had anything to declare. He said that he had, and presented a sum of EUR 199,400 in cash, explaining that the money came from the sale of his vehicle and from his bank account. He presented supporting documents. The same day the head of the Svilengrad customs office issued an administrative offence notice accusing Mr Togrul of failing to declare the money. A police investigator seized the EUR 199,400, together with two banknotes with a total value of EUR 600. Mr Togrul subsequently handed over further banknotes worth EUR 8,500 to the investigator. Criminal proceedings were brought against him but in January 2009 the public prosecutor found that the facts did not constitute a criminal offence.

In February 2009 the head of the Svilengrad customs office fined Mr Togrul approximately EUR 1,533.88 on the grounds that he had not complied with his obligation to declare the EUR 199,400 that had been confiscated from him. In addition, the EUR 9,100 which Mr Togrul had handed over to the police investigator was retained.

Relying on Article 1 of Protocol No. 1 (protection of property), Mr Togrul alleges that the fine and the confiscation order for a breach of customs legislation, taken together, were disproportionate. He also complains of the authorities' failure to return the EUR 9,100 to him.

[V.D. v. Croatia](#) (no. 2) (no. 19421/15)

The applicant, Mr V.D., is a Croatian national who was born in 1960.

The case concerns the applicant's complaint about an investigation into his allegations of police brutality. The investigation was launched after the Court had earlier found a violation of the applicant's rights under the substantive and procedural aspect of Article 3 (V.D. v. Croatia).

The applicant, who suffered from schizophrenia, was arrested in August 2006 following a family argument. In November 2011, the Court found that the investigation into his arguable claim of police ill-treatment during his arrest had not been effective and had violated his rights. The Court also found that the applicant had been subjected to ill-treatment contrary to Article 3 of the Convention. Under an action plan for the execution of the Court's judgment, the domestic authorities in June 2014 re-opened the investigation into the police officers alleged to have ill-treated him.

The State Attorney's Office took various investigatory steps, including interviews with the police officers, the applicant, witnesses to the incident and one of the paramedics who had attended him. In December 2014 the State Attorney's Office terminated the investigation with a reasoned decision owing to a lack of evidence of any ill-treatment or excessive use of force by the police. The Constitutional Court rejected a complaint by the applicant about that decision in February 2015.

Separately, the applicant sought compensation in the civil courts. That case ended in April 2016 when the State paid him about 8,850 euros for damage, costs and expenses. The applicant died of heart failure in November 2017 after being placed in a psychiatric hospital.

The applicant complains that the second investigation also failed to meet the requirements of Article 3 (prohibition of inhuman or degrading treatment).

[The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.](#)

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Alaskarova and Others v. Azerbaijan (no. 4026/10)

Aslanov v. Azerbaijan (no. 35402/07)

Babayev v. Azerbaijan (no. 56540/10)

Berezinskaya v. Azerbaijan (no. 40367/15)

Bjelik and Others v. Croatia (no. 31680/12)

Vuković v. Croatia (no. 47880/14)

Meletsis v. Greece (no. 26438/15)

Palmistras v. Greece (no. 76378/14)

Deák v. Hungary (no. 19565/14)

Di-Sec Discrete Security Kft v. Hungary (no. 52421/15)

Géczi and Others v. Hungary (nos. 67794/13, 69721/13, 74829/13, 77191/13, 78280/13, 80985/13, and 38392/14)

Gosztonyi and Others v. Hungary (nos. 33440/17, 71368/17, 71373/17, 71377/17, and 71382/17)

Juhász-Buday and Others v. Hungary (nos. 3189/14, 9269/14, 14955/14, 17949/14, 19446/14, and 39007/14)

Karsai and Others v. Hungary (nos. 59103/13, 42573/14, 52990/14, 72201/14, 11927/15, 15756/15, 16466/15, 47943/15, 53271/15, 53438/15, 53448/15, and 53803/15)

Kondrát and Others v. Hungary (nos. 5710/16, 6294/16, 13788/16, 17644/16, 22635/16, 23414/16, 26684/16, 53149/16, 57251/16, 61289/16, 24422/17, and 76332/17)

Nagy-Navarro v. Hungary (no. 14461/15)

Navigáció Szövetkezet and Others v. Hungary (nos. 22579/13, 42761/13, 45466/13, 45595/13, 48528/13, 62541/13, and 63911/13)

Németh v. Hungary (no. 18173/13)

Pásztor and Others v. Hungary (no. 39199/13)

Pázi and Others v. Hungary (nos. 72595/13, 49607/14, 6233/15, 23259/15, 26974/15, 32382/15, 33932/15, 35165/15, and 39649/15)
Salát v. Hungary (no. 42794/13)
Szűcs and Others v. Hungary (nos. 20811/14, 53217/14, 53698/14, 57841/14, 75399/14, 13347/17, 70387/17, 70390/17, and 77931/17)
U.M. Kereskedelmi Kft and Others v. Hungary (nos. 1268/15, 11244/15, 11249/15, 11942/15, 13189/15, 43439/15, and 43442/15)
Dumpe v. Latvia (no. 71506/13)
Grotuzas v. Lithuania (no. 19406/15)
M.A. v. the Netherlands (no. 42572/15)
Augustyniak v. Poland (no. 37956/10)
Birecki v. Poland (no. 54080/16)
Dawidowski v. Poland (no. 30822/12)
Gawroński v. Poland (no. 36042/16)
Kwitowski v. Poland (no. 57016/15)
Skatulski v. Poland (no. 45334/16)
Skowroński v. Poland (no. 32038/17)
Truszkowski v. Poland (no. 62831/15)
Budi and Diaconu v. Romania (nos. 15584/16 and 21450/16)
Dézi and Others v. Romania (nos. 13667/15, 38178/15, 44044/15, 2758/16, 14724/16, 15595/16, 15684/16, 16306/16, 18178/16, 20186/16, 20643/16, 23995/16, 24537/16, 25046/16, 27336/16, 29879/16, 31349/16, and 38013/16)
Pîrvan and Others v. Romania (nos. 23389/16, 23393/16, 25826/16, and 29254/16)
Sîrbu v. Romania (no. 35960/16)
Stancu v. Romania (no. 72242/13)
Chugunova v. Russia (no. 68811/16)
Kopeykin v. Russia (no. 11588/17)
Tkachenko and Others v. Russia and Ukraine (nos. 10812/06, 70090/10, 3620/14, and 77427/14)
Zaiko v. Russia (no. 6033/15)
Ivanović v. Serbia (no. 51601/15)
JKP Vodovod Kraljevo v. Serbia (nos. 57691/09 and 19719/10)
Akbulut v. Turkey (no. 44491/14)
Ceyran and Others v. Turkey (no. 41886/05 and 72 other applications)
Kayan v. Turkey (no. 54700/11)
Yağcı and Özcan v. Turkey (no. 83646/17)
Z.Y. v. Turkey (no. 20948/17)
Gevel and Others v. Ukraine (nos. 22271/14, 63645/17, 6314/18, and 7203/18)
Klimenko v. Ukraine (no. 50873/10)
LS, TOV v. Ukraine (no. 35517/13)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.